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9 HALVERSON DYNAMICS, INC.

10 SUPERIOR COURT OF THE STATE OF CALIFORNIA

11 COUNTY OF SANTA CLARA

MARGARET OKONKWO-REYES, an  
individual,

Plaintiff,

vs.

HALVERSON DYNAMICS, INC., a  
Delaware corporation; and DOES 1  
through 20, inclusive,

Defendants.

Case No. 24CV412887

**DEFENDANT HALVERSON  
DYNAMICS, INC.'S OPPOSITION  
TO PLAINTIFF'S MOTION TO  
COMPEL FURTHER RESPONSES  
TO SPECIAL INTERROGATORIES,  
SET ONE**

Date: November 14, 2026

Time: 9:00 a.m.

Dept.: 7

Judge: Hon. Dolores A. Marchetti

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13 **I. INTRODUCTION**

14 Plaintiff's motion treats twenty-two interrogatories as if they were one.  
15 They are not. Halverson Dynamics, Inc. ("Halverson") answered the four  
16 interrogatories that asked for facts it possesses, objected to the eleven that ask  
17 it to identify every employee who ever "reviewed, considered, or discussed" a  
18 component in a product line it has sold for nine years,<sup>1</sup> and offered, twice in  
19 writing, to answer narrowed versions of the rest.

20 Plaintiff rejected both offers and filed this motion. The Court should  
21 deny it, or at most order responses to the narrowed interrogatories Halverson  
22 has already agreed to answer, and should deny the request for sanctions.

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<sup>1</sup> Interrogatories Nos. 3 through 9, 12, 14, and 17 through 22 all incorporate the same defined terms. (Arbutnot Decl., Ex. 2.)

## II. ARGUMENT

### A. The Interrogatories Are Overbroad as Written.

An interrogatory must be "full and complete in and of itself" and may not be "unduly burdensome or oppressive." (Code Civ. Proc., §§ 2030.060, subd. (d), 2030.090, subd. (b).) Special Interrogatory No. 3 asks Halverson to "IDENTIFY every PERSON who reviewed, considered, evaluated, tested, or discussed the WIRING HARNESS at any time." The defined term "WIRING HARNESS" covers every harness assembly in every Model 300-series unit since 2017. Halverson has manufactured roughly 140,000 of them.

Plaintiff's reply to this objection was to propose limiting the interrogatory to the eleven months before her purchase — which Halverson accepted in writing on August 26, 2026. (Declaration of Desmond K. Arbuthnot ("Arbuthnot Decl.") ¶ 4, Ex. 1.) The motion does not mention that letter.<sup>2</sup>

### B. Sanctions Are Not Warranted.

Sanctions may not be imposed where the party opposing the motion "acted with substantial justification." (Code Civ. Proc., § 2030.300, subd. (d).) A party that answers what it can, objects with reasons, and agrees in writing to the narrowing the propounding party itself proposed has acted with substantial justification by any measure.

## III. CONCLUSION

Halverson respectfully requests that the Court deny the motion, or in the alternative order further responses only to Special Interrogatories Nos. 3, 4, 7, and 12 as narrowed in the parties' correspondence of August 26, 2026, and deny sanctions.

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<sup>2</sup> The letter is attached as Exhibit 1 to the Arbuthnot Declaration filed with this opposition.

1 Dated: October 30, 2026  
2 ARBUTHNOT LLP  
3

FERRANTE, LOWE &

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By:

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Desmond K. Arbuthnot

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Attorneys for Defendant

**PROOF OF SERVICE**

I am employed in the County of Santa Clara, State of California. I am over the age of eighteen and not a party to this action. My business address is 2010 North First Street, 9th Floor, San Jose, California 95131.

On October 30, 2026, I served the foregoing DEFENDANT HALVERSON DYNAMICS, INC.'S OPPOSITION TO PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET ONE on the interested parties in this action as follows:

| <b>Party served</b>                                | <b>Address</b>                                    | <b>Method</b>            |
|----------------------------------------------------|---------------------------------------------------|--------------------------|
| Priya N. Vanterpool, Esq.<br>Vanterpool & Ashe LLP | 1550 The Alameda, Suite 300<br>San Jose, CA 95126 | Electronic service       |
| Clerk of the Court<br>Dept. 7                      | 191 North First Street<br>San Jose, CA 95113      | Courtesy copy by<br>mail |

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed on October 30, 2026, at San Jose, California.

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Rosalind Achebe-Marr